IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-203
CP (CAA) No.-06/230/232/ND/2022(2nd Motion)

IN THE MATTER OF:
Torqus Systems Pvt. Ltd. And Times Internet Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 29.08.2023**

CORAM:
SHRI P.S.N. PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

Order pronounced in open court vide separate sheets. CP (CAA) No.-06/230/232/ND/2022(2nd Motion) is **allowed**.

Sd/- **Sd/-**
(DR. BINOD KUMAR SINHA) **(P.S.N. PRASAD)**
MEMBER (T) **MEMBER (J)**

IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI
BENCH – V
COMPANY PETITION NO. (CAA) – 06 (ND)/2022
CONNECTED WITH
COMPANY APPLICATION NO. 13 (ND)/2021

Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF:

TORQUS SYSTEMS PRIVATE LIMITED

...PETITIONER NO.1/TRANSFEROR COMPANY

AND

TIMES INTERNET LIMITED

...PETITIONER NO.2/ TRANSFEREE COMPANY

Order Delivered On: 29.08.2023

CORAM:

SHRI P.S.N. PRASAD, HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Adv. Abhishek Sethi, Adv. Syed Asad Mardi
For the Respondent	:
For the IT Dept	: Mr. Sunil Aggarwal, Sr St Counsel, Mr. Shivansh B Pandya Jr St Counsel with Mr. Utkarsh Tiwari Advs
For the OL	: Ms. Hemlata Rawat, Mr. Aayushmaan Vatsyayana

ORDER

PER: DR. BINOD KUMAR SINHA, HON'BLE MEMBER (TECHNICAL)

1. The present Joint Petition is filed by the Petitioner Companies herein M/s TORQUS SYTEMS PRIVATE LIMITED (Transferor Company

/Petitioner No.1) and M/s TIMES INTERNET LIMITED (Transferee Company/Petitioner No. 2) under Section 230-232 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, and the National Company Law Tribunal Rules, 2016, for the purpose of the Sanction of the proposed Scheme of Amalgamation of the Transferor Company with M/s TIMES INTERNET LIMITED (Transferee Company/Petitioner No. 2). The copy of the Scheme of Amalgamation (hereinafter referred as the "Scheme"), has been placed on record.

2. The Transferor Company/Petitioner No. 1 i.e M/s Torqus Systems Private Limited is a private limited company incorporated on 28.11.2014 under the provisions of the Companies Act, 2 vide CIN: U72900DL2014PTC358928, having its registered office situated at Express Building, 9-10, Bahadurshah Zafar Marg, Delhi 110002, India. Thus, the registered office of the Transferor Company is under the jurisdiction of this Tribunal. The authorized share capital of the Transferor Company is Rs. 25,00,000/- divided into Rs. 8,00,000/- Equity Share Capital into 80,000 Equity Shares of Rs. 10/- each and Rs. 17,00,000/- Preference Share Capital divided into 1,7000.0001% Non-cumulative Compulsorily Convertible Preference Shares of Rs. 1000/- each. The issued, subscribed and paid-up share capital of the Transferor Company is Rs. 15,03,590/- divided into Rs. 1,19,590/- Equity Share Capital into 11,959 Equity Shares of Rs. 10/- each and Rs. 13,84,000/- Preference Share Capital divided into 1,3840.0001%

Non-cumulative Compulsorily Convertible Preference Shares of Rs. 1000/- each.

3. The Transferee Company/ Petitioner Company No. 2 i.e. M/s Times Internet Limited is a private limited company incorporated on 04.05.1999 under the provisions of the Companies Act, 1956 vide CIN: U74300DL2008PTC176989, having its registered office at Express Building, 9-10 Bahadurshah Zafar Marg, New Delhi- 110002. Thus, the registered office of the Transferee Company is under the jurisdiction of this Tribunal. The authorized share capital of the Transferee Company is Rs. 40,28,06,00,000/- divided into Rs. 1,70,24,00,000/- Equity Share Capital into 17,02,40,000/- Equity Shares of Rs. 10/- each and Rs. 38,57,82,00,000/- Preference Share Capital divided into 3,85,78,20,000 8% Non-cumulative Compulsorily Convertible Preference Shares of Rs. 10/- each. The issued, subscribed and paid-up share capital of the Transferee Company is Rs. 29,84,55,44,090/- divided into Rs. 1,11,29,84,090/- Equity Share Capital into 11,12,98,409 Equity Shares of Rs. 10/- each and Rs. 28,73,25,60,000/- Preference Share Capital divided into 2,87,32,56,0008% Non-cumulative Compulsorily Convertible Preference Shares of Rs. 10/- each.

4. The Petitioner Companies submit that the proposed scheme of amalgamation of the Transferor Companies and Transferee Company would have the following benefits: -

i. The Transferor Company and the Transferee Company are engaged in similar business activities. The Transferee Company holds the entire issued, subscribed and paid-up equity and preference share capital of the Transferor Company in its own name and/or jointly with its nominees. The proposed amalgamation will enable the combined to have greater and optimal use of resources.

ii. The proposed Scheme of Amalgamation would result in business synergy, pooling of financial and human resource of the companies and strengthen the operations and management of the companies for the beneficial utilization of these factors in the combined entity. The Transferee Company would be able to consolidate operations through optimum utilization of its resources and avoidance of duplication, resulting in efficient synergies of operations and streamlined business transactions.

iii. The proposed Scheme of Amalgamation will result in elimination of duplicate work, reduction in overheads and costs, operational rationalisation, optimal utilization of financial, human and other resource, consolidation of managerial expertise and enhancement of overall business efficiency and credibility. The proposed Scheme will enable the Companies to combine their managerial and operating strength, to build a wider capital and financial base to promote and secure overall growth.

iv. The proposed Scheme of Amalgamation will result in reduction in compliances and statutory filings with the Government departments.

v. The proposed Scheme of Amalgamation will result in enhanced leveraging capability of the combined entity to undertake future expansion strategies and to tap bigger opportunities in the industry.

vi. The proposed Scheme of Amalgamation will result in creation of a single "go to Market" strategy and a single company brand image leading to stronger market presence and higher confidence among its stakeholders.

5. The appointed date as fixed for the proposed scheme of Amalgamation is 1st April, 2020 or such other date as may be directed by this Tribunal.

6. From the records, it is seen that the First Motion joint application was filed before this Tribunal vide CA(CAA)13/ND/2021. Vide order dated 3rd January, 2022, the meeting of Shareholders, Secured Creditors and Unsecured Creditors of the Petitioner No. 1 and Petitioner No.2 was dispensed with. Therefore, no chairperson was appointed by the Tribunal and therefore, no report of chairperson is being submitted.

7. The Tribunal directed the petitioner companies to issue individual notices to the (i) Regional Director, Northern Region of Ministry of Corporate Affairs, (ii) Income Tax Department, (iii) Registrar of Companies NCT of Delhi and Haryana, and (iv) Official Liquidator

8. The Petitioner Companies were also directed to carry out publication in the newspapers. It is seen from the records that the petitioners have filed an Affidavit affirming compliance and disclosing that the applicants have effected publication in "Business Standard" (English, Delhi edition) edition as well as "Business Standard" (Hindi, Delhi edition), both dated on 11.02.2022. In addition to the public notice, notices were served on the Regional Director (Northern Region), Official Liquidator, the Income Tax Department, Registrar of Companies, NCT of Delhi and Haryana, the Reserve Bank of India and to the other relevant sectoral regulators.

9. Pursuant to the notice issued to the Regional Director and Official Liquidator, they have filed their response/reply in the matter.

10. The Regional Director (RD) in its report dated 23.08.2022 has made certain observations with regard to the proposed scheme of Amalgamation among the Petitioner Companies. The Petitioner Companies had filed reply dated 10.09.2022 in response to the observations made by the Regional Director, under wherein the Petitioner Companies gave clarification and undertaking to address the observations made by the Regional Director. The details of the same are summarised below:

Observation	Observation of the Regional Director vide report dated 23.08.2022	Reply of the Petitioner Companies vide Affidavit dated 10.09.2022
1.	i. As per the para 16 of the order dated 03.01.2022 pronounced by Hon'ble NCLT in this matter, it is mentioned	i. Please note that the loan taken by the Transferee Company from HDFC Bank

	that Transferee company has one secured creditor having outstanding balance of Rs. 173,98,36,48 as on October 31, 2020. The HDFC Bank Limited is the sole secured creditor of the Transferee company which has given their consent to the scheme. However, on perusal of MCA21 record, no CHG-1 e-form has been filed with Registrar of Companies for creation of charge in favour of HDFC Bank being a Secured Creditor. ii. On perusal of MGT-7 of Transferor Company, it is seen that no form MGT-6 has been filed in respect of Shri Ashok Kumar who has been shown as a nominee of Transferee Company. iii. From the Financial Statement year ended 31.03.2020 of Transferor company, it has been shown that nominees jointly hold 6 shares along with Transferee company in the Transferor company. It is submitted that joint holders cannot be regarded as nominees. iv. As per the notes to financial statements of Transferor company for the year ended 31.03.2020, in the note no. 2.32, it is stated that "The company has significant accumulated losses which has resulted in erosion of its entire net worth as at March 31,2020. Further, Current liabilities exceeds Current assets by Rs. 2,94,86,774. In view of the continuing financial support from the holding company, the management considers it appropriate to prepare these financial statements on a going concern basis. v. As per the Independent Auditors Report of Transferor Company for the year ended 31.03.2020, Auditor has stated that: - a) There were no undisputed statutory dues payable as at March 31, 2020 which were outstanding for a period of more than six months from the date they become payable except for income tax liability of Rs. 15,858/-. b) The dues in respect service tax that have not been deposited with the appropriate authorities to the extent available on account of any dispute is as under	Limited has been paid off on June 11, 2021. Accordingly, the HDFC Bank Limited is no longer the creditor of the Transferee Company. Further we would like to highlight that the security against the loan taken by the Transferee Company was not provided directly by the Transferee Company but was provided by the subsidiaries of the Transferee Company namely: S. No. | Name of Subsidiaries 1. | Akuate Internet Services Private Limited 2. | Haptik Infotech Private Limited ii. Please note that the e-form MGT-6 in respect of Shri Ashok Kumar has been filed by the Transferor Company with Registrar of Companies. iii. Please note that as per the list of shareholders filed with e-form MGT-7 for the year ended March 31, 2020 it is seemed that all the 6 nominee shareholders are not holding the shares jointly with the Transferee Company. Further please note that in the financial statement of the year ended March 31,2020 of Transferor company there was a typographical error that the nominee shareholders are holding shares jointly with the Transferee company. List of shareholders and e-form MGT-7 as on March 31,2020. iv. Please note that with effect from the appointed date and pursuant to the clause 12.1.3 of proposed Scheme of Amalgamation all the liabilities of the Transferor Company shall be transferred and vested in the Transferee Company.

Name of the Statute	Nature of Dues	Period to which Amount Relates	Amount in Rupees	Forum where disputes are pending
Finance Act 1994	Service Tax	FY 2016-17	80,880/-	Superintendent of Service Tax

vi. As per the Independent Auditors Report of Transferee company for the year ended 31.03.2020, Auditor has stated that the dues in respect of Income Tax, Sales Tax, and Value Added Tax that have not been deposited with the appropriate authorities to the extent applicable on account of any dispute are as under:

Name of the Statut	Nature of Dues	Period to which	Amount in Crores	Forum where disputes are pending
Income Tax Act,1961	Income Tax	2007-08	0.12	Income Tax Appellate Tribunal
Income Tax Act,1961	Income Tax	2008-09	4.21	Commissioner of Income Tax (Appeals)
Income Tax Act,1961	Income Tax	2009-10	1.32	Commissioner of Income Tax (Appeals)
Income Tax Act,1961	Income Tax	2010-11	1.44	Commissioner of Income Tax (Appeals)
Income Tax Act,1961	Income Tax	2011-12	0.66	Commissioner of Income Tax (Appeals)
Income Tax Act,1961	Income Tax	2012-13	0.63	Commissioner of Income Tax (Appeals)
Income Tax Act,1961	Income Tax	2015-16	0.98	Commissioner of Income Tax (Appeals)
Tamilnadu Value Added Tax Act,2006	Value Added Tax	2011-12, 2012-13 & 2013-14	0.36	State Tax Officer, Chennai
Delhi Value Added Tax, 2004	Value Added Tax	2012-13	0.72	Assistant Commissioner Sales Tax, Delhi
Maharashtra Value Added Tax Act,2002	Value Added Tax	2007-08	5.49	Sales Tax Tribunal Maharashtra
Maharashtra Value Added Tax Act,2002	Value Added Tax	2010-11	5.64	Sales Tax Tribunal Maharashtra
Delhi Value Added Tax Act, 2004	Value Added Tax	2013-14	0.51	Assistant Commissioner Sales Tax, Delhi
Maharashtra Value Added Tax Act,200	Value Added Tax	2011-12	8.70	Deputy Commissioner of Sales Tax (Appeal), Mumbai
Uttar Pradesh Valu Added Tax Ac 2008	Value Added Tax	2016-17	0.13	Additional Commissioner, Ghaziabad
Finance Act, 1994	Service Tax	April to June 2017	1.95	Commissioner Appeal, Delhi

vii. It is seen from the financial statement for the FY 2018-19, 2019-20 and

Reproducing below the relevant clause 12.1.3 of the proposed Scheme of Amalgamation:

"All loans raised, liabilities, obligations, duties and commitments that have undertaken or discharged by the Transferor Company after the Appointed Date and prior to the Effective Date, shall, subject to the terms of this Scheme, be deemed to have been raised, used, undertaken or incurred or incurred by the Transferor Company shall be deemed to have been vest in terms of this Scheme and to the extent they are outstanding on the Effective Date, shall also, without any further act or deed be and be deemed to become the debts, liabilities, duties and obligations of the Transferee Company."

v. Please note that:

a) The Transferor company had an undisputed income tax demand of Rs. 15,858. The same has been paid by the company and as on date, there are no undisputed statutory dues payable

b) The Transferor Company had paid the demand of Rs. 80,880/- and had submitted the letter with the authorities.

vi. Please note that pursuant to the effectiveness of the proposed Scheme of Amalgamation the liabilities of the Transferee Company will not be impacted.

Further, the current status of the dues in respect of Income Tax, Sales Tax, and Value Added Tax.

vii. Please note that with effect from the appointed date and pursuant to the clause 12.1.3 of proposed Scheme of Amalgamation all the liabilities of the Transferor Company shall be transferred

		2020-21 of the Transferor Company that debt equity ratio of the company is very high, as compare with the standard ratio of 2:1 (debt equity ratio). So, it looks the company is very highly leveraged and going concern of the company is questionable as per AS-1. Please offer your comments in this regard.	and vested in the Transferee Company. Reproducing below the relevant clause 12.1.3. of the proposed Scheme of Amalgamation: *"All loans raised, liabilities, obligations, duties and commitments that have undertaken or discharged by the Transferor Company after the Appointed Date and prior to the Effective Date, shall, subject to the terms of this Scheme, be deemed to have been raised, used, undertaken or incurred or incurred by the Transferor Company shall be deemed to have been vest in terms of this Scheme and to the extent they are outstanding on the Effective Date, shall also, without any further act or deed be and be deemed to become the debts, liabilities, duties and obligations of the Transferee Company."*
	viii.	It is seen from the note no. 2.8(b) notes to financial statements for the FY 2018-19 of the Transferor Company, where company has mentioned the company had issued 5228 equity shares at a premium of Rs. 7772778 and 1384,0.0001% Compulsory Convertible Preference Shares, at a Premium of Rs. 9437496. In this regard, please furnish the copy of the valuation report and compliance of the provisions of the Companies Act, 2013.	viii. For your perusal the valuation reports and filed e-forms PAS-3 for issuance of 5528 equity shares and 1384, 0.0001% compulsory convertible preference shares.
	ix.	It is seen from the note no. 219 notes to financial statements for the FY 2019-20 of the Transferor Company, where company has mentioned Provision for bad and doubtful debts as Rs. 18,05,165. Please offer your comments in this regard for which amount, the company has created this provision.	ix. Please note that the Transferor Company uses an expected credit loss model to assess the impairment loss or gain. Accordingly, for that purpose the Transferor Company makes an allowance for bad and doubtful debts when a customer fails to make contractual payments which is due for more than one year.
2.	i.	It is observed from the Balance Sheet of Times Internet Limited, the Company availed overdraft facility during 2020-21 to the tune of Rs. 139.57 Crores from HDFC Bank No. CHG-1 has been filed by the Company and the Company has stated that the security against the loan taken by the Transferee Company was not provided	i. It is submitted that the overdraft facility which was taken by the Transferee Company from the HDFC Bank Limited against the securities provided by the subsidiaries of the Transferee Company namely: - (a) Akuate Internet Services

	directly by the Transferee Company but was provided by the subsidiaries of the Transferee Company viz (a) Akuate Internet Services Private Limited (b) Haptik Infotech Private Limited but no CHG-1 for creation of charge were filed by these companies nor CHG-4 for repayment of loans were filed by the above two Subsidiaries Company. Further it is observed that the subsidiaries companies Akuate Internet Services Private Limited and Haptik Infotech Private Limited are already amalgamated. ii. It is observed that the transferor Company was incorporated on 28.11.2014 and issued 5528 equity shares and 1384, 0.0001% Compulsory Convertible Preference shares at premium since 2015 whereas the company incurred losses and which resulted in erosion of entire Net worth as at 31.03.2020. It is clear that the transferor company had indulged in issue of exorbitant premium of Rs 966,1464,6829,6819 and 6819 even the company incurred loss and negative EPS during the period Rs. - 162.45, Rs. -162.45, Rs -484, Rs. -484, Rs. -484 and Rs. -484 respectively. Thus the transferor company appears to be indulged in circulation of the money. Thus the real purpose of the incorporation of the transferor company was tainted with irregularity, the purpose of the transferor company, petitioner in this application, has been to use the approval of the scheme as a cover up the irregularity, as the company will be dissolved without winding up. Therefore, it is humbly prayed that this Hon'ble Tribunal may be pleased to reject the proposed amalgamation.	Private Limited (b) Haptik Infotech Private Limited has been paid off on June 11, 2021. Accordingly, the HDFC Bank Limited is no longer the creditor of the Transferee Company and did not impact the financials of the Transferee Company. A statement of bank account showing repayment proof is enclosed. Also, it is submitted & undertaken that pursuant to the effectiveness of the proposed Scheme of Amalgamation the liabilities of the Transferee Company will not be impacted in any manner and the Transferee Company will continue to remain in existence and liable for paying off its liabilities even post implementation of the proposed Scheme of Amalgamation. ii. It is submitted that the issuance of equity shares and compulsory convertible preference shares at premium by the Transferor Company was done by complying the necessary provisions of the Companies Act, 2013 and the requisite e-forms and the valuation reports have also been filed with the concerned Registrar of the Companies. The valuation reports for the aforesaid issuance have also been furnished with Ld. Regional Director which clearly indicates the method of valuation and the amount of premium for issuance of shares by the Transferor Company. It is further submitted that the accounts of the Transferor Company were duly audited since its incorporation and there was no qualification/adverse remarks report by the statutory auditor in its audit report pertaining to the

		aforesaid issuance of shares or any other material event. Also, please note that the Transferee Company had acquired the entire shares of Transferor Company on November 22, 2018 and prior to this acquisition the Transferee Company was neither involved in the affairs of the Transferor Company nor it was holding any shares of the Transferor Company. Accordingly, the issuance of shares by the Transferor Company was done by the previous management/shareholders. Also, post-acquisition of the Transferor Company by the Transferee Company no further issuance of shares (neither at par nor at premium) was done.

11. Thus, the Regional Director (RD) in its report dated 23.08.2022 had made certain observations with regard to the proposed scheme of amalgamation among the petitioner companies. However, after the reply of the Petitioner Companies in response to the observations made by the Regional Director, and further keeping in view the arguments advanced by both sides, we do not find any valid reason to reject the proposal of the petitioner. Further, the Hon'ble Supreme Court time and again has said that the Company is the best judge to manage its own business.

12. The Official Liquidator has filed its report dated 04.05.2022, wherein no specific objection has been raised against the approval of the Scheme. It is submitted in the report that the affairs of the transferor

companies do not appear to have been conducted in a manner prejudicial to the interest of its members or to public interest.

13. The Income Tax Department has submitted its report dated 09.05.2022 wherein no specific objection was raised. Further, the Counsel for the Income Tax Department also appeared before us on 23.11.2022 and stated that they have no objection to the proposed scheme of amalgamation.

14. Considering the reply of the Petitioner Companies and further, the undertaking of the Petitioner Companies with respect to the observations and clarifications, we find no impediment in approving the present scheme of amalgamation.

15. In this petition it has also been affirmed that no proceeding for inspection, inquiry or investigation under the provisions of the Companies Act, 2013 or under provisions of Companies Act, 1956 is pending against the Petitioner Companies.

16. Certificates of Statutory auditor of the petitioner companies, has been placed on record to the effect that Accounting Treatment proposed in the Scheme of Amalgamation is in conformity with the Accounting Standard notified by the Central Government as specified under the provisions of Section 133 of the Companies Act, 2013 read with Rule 7 of the Companies Accounts Rules, 2014 and Companies (Accounting Standards) Amendment Rules, 2016, and other generally accepted accounting principles in accordance with the Companies Act, 2013, as applicable.

17. The shareholders of the petitioner companies are the best judges of their interest, being fully conversant with market trends, and therefore, their decision should not be interfered with by the Tribunal for the reason that it is not a part of the judicial function to examine entrepreneurial activities and their commercial decisions. It is well settled that the Tribunal evaluating the Scheme, of which sanction is sought under Section 230-232 of the Companies Act of 2013, will not ordinarily interfere with the corporate decisions of companies as approved by shareholders and creditors.

18. It has also been affirmed in the petition that the Scheme is in the interest of all the Petitioner Companies including their shareholders, creditors, employees and all concerned. In view of the foregoing, upon considering the approval accorded by the members and creditors of the Petitioner companies to the proposed Scheme, there appears to be no impediment in sanctioning the present Scheme.

19. Consequently, sanction is hereby granted to the Scheme under Section 230 to 232 of the Companies Act, 2013 with the following directions: -

    (i) The Petitioners shall however remain bound to comply with the statutory requirements in accordance with the law.

    (ii) Notwithstanding the above, if there is any deficiency found or, violation committed, qua any enactment, statutory rule or regulation, the sanction granted by this court to the scheme will not come in the way of action being taken in accordance with the

law, against the concerned persons, directors and officials of the petitioners.

(iii) While approving the Scheme as above, we further clarify that this order should not be construed as an order in any way granting exemption from payment of stamp duty, taxes or any other charges if any, and payment in accordance with law or in respect to any permission/compliance with any other requirement which may be specifically required under any law.

20. This tribunal further directs with respect to all the Transferor companies and the Transferee company, that:

(i) The Appointed Date as fixed for the proposed scheme is 01.04.2020 or such other date as may be directed by this Tribunal. Keeping in view, the facts of this case as well as the time taken in this process, we hereby prescribe 01.04.2022 as the Appointed Date of the proposed scheme.

(ii) Upon the sanction becoming effective from the appointed date i.e. 01.04.2022 as prescribed by the Tribunal, the Transferor Company shall stand dissolved without undergoing the process of winding up.

(iii) All contracts of the Transferor Company, which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favor of the Transferee Company and may be enforced by or against it as fully and effectually as if, instead of the

Transferor Company, the Transferee Company had been a party or beneficiary or obliged thereto;

(iv) All the employees of the Transferor Company shall be deemed to have become the employees and the staff of the Transferee Company with effect from the Appointed Date, and shall stand transferred to the Transferee Company without any interruption of service and on the terms and conditions no less favorable than those on which they are engaged by the Transferor Company, as on the Effective Date, including in relation to the level of remuneration and contractual and statutory benefits, incentive plans, terminal benefits, gratuity plans, provident plans and any other retirement benefits;

(v) All liabilities of the Transferor Company, shall, pursuant to the provisions of section 232(4) and other applicable provisions of the Companies Act, 2013, to the extent they are outstanding as on the Effective Date, without any further act, instrument or deed stand transferred to and be deemed to be the debts, liabilities, contingent liabilities, duties and obligations etc. as the case may be, of the Transferee Company and shall be exercised by or against the Transferee Company, as if it had incurred such liabilities.

(vi) All proceedings now pending by or against the Transferor Company be continued by or against the Transferee Company.

(vii) Any person interested or effected shall be at liberty to apply to this Tribunal in the above matter for any directions that may be necessary.

21. Further, the Petitioner Companies shall within thirty days of the date of the receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the Transferor company shall be dissolved and the Registrar of Companies shall place all documents relating to the Transferor Company on the file kept by him in relation to the Transferee Company and the files relating to all the Petitioner Companies shall be consolidated accordingly.

22. In compliance with the requirement of Section 232 (7) of the Act, the transferee company shall until the full implementation of the Scheme of Amalgamation shall file a statement every year in the Form CAA 8 along with the required fees with the Registrar of Companies as prescribed in the Companies (Registration offices and fees) Rules 2014 within 210 days from the end of each financial year.

23. The petition stands disposed of in the above terms.

Let copy of the order be served to the parties.

Sd/-
(DR. BINOD KUMAR SINHA)
MEMBER (TECHNICAL)

Sd/-
(SH. P.S.N. PRASAD)
MEMBER (JUDICIAL)